

CARROLL v. BECKER, SECRETARY OF STATE.

CERTIORARI TO THE SUPREME COURT OF MISSOURI.

No. 805. Argued March 24, 1932.—Decided April 11, 1932.

Decided upon the authority of *Smiley v. Holm*, ante, p. 355.
328 Mo. —; 45 S. W. (2d) 533, affirmed.

CERTIORARI* to review a judgment quashing an alternative writ of mandamus.

Messrs. Edward F. Colladay and Hyman G. Stein for petitioner.

Whatever the term "legislature" meant to the framers of the Constitution when it was adopted it still means. 1 Cooley's Const. Lim., p. 123.

When the Constitution was agreed upon, eleven of the original States had adopted constitutions in which the word "legislature" or its equivalent was defined, but not in any one of them was the Governor included as a part of the legislature.

The framers must have intended to provide for the uniform operation of the instrument among all of the original States. The carrying out of such intention necessarily required that the word "legislature" should mean the same in each State, and this required the exclusion from that term of the Governor.

As was pointed out in *Hawke v. Smith*, 253 U. S. 221, a "legislature" at the time the Constitution was framed was the representative body which made the laws of the people, and the term is often used in the Constitution with this evident meaning.

If the word "legislature" as used in Art. V does not mean the law-making power, then we submit that it does

* See table of cases reported in this volume.